

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ALBERT ESCALERA,

Index No.:

Date purchased:

Plaintiff,

Plaintiff designates
NEW YORK County
as the place of Trial.

-against-

THE CITY OF NEW YORK, NEW YORK CITY,
POLICE DEPARTMENT, and PO JUSTIN P.
MCKNIGHT,**SUMMONS WITH NOTICE**

The basis of the venue is

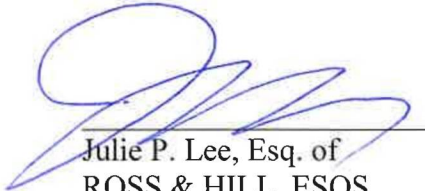
Place of Occurrence:

New York, NY

Defendants.

-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
July 26, 2019
Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

Notice: The nature of this action: negligence; personal injuries; assault; battery; excessive force; unlawful detention; false arrest; false imprisonment; violation of civil rights.

The relief sought is monetary damages: compensatory damages and exemplary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from November 2, 2018 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:
ALBERT ESCALERA,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY,
POLICE DEPARTMENT, and PO JUSTIN P.
MCKNIGHT,

Defendants.

-----X

Plaintiff herein, by his attorneys, Ross and Hill, Esqs, complaining of the above-named defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff **ALBERT ESCALERA** was and still is a resident of New York County and the State of New York.

2. At all times hereinafter mentioned, defendant **THE CITY OF NEW YORK** was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant **NEW YORK POLICE DEPARTMENT** is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. At all times hereinafter mentioned, defendant **PO JUSTIN P. MCKNIGHT**, shield number 22630, was a police officer employed by the New York City Police Department, and at all times herein, was acting in the scope of his employment as a police officer.

5. At all times hereinafter mentioned, defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

6. On November 12, 2018, plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within ninety (90) days of the incident giving rise to this law suit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

9. That on November 2, 2018 at approximately 2:00 AM, plaintiff was a passenger in a motor vehicle that was unlawfully stopped by police officers at or near 133rd Street and Amsterdam Avenue, City and State of New York.

10. That at said time, plaintiff was unlawfully detained.

11. That the police officers unlawfully placed handcuffs on plaintiff.

12. That the police officers, without reasonable or probable cause, falsely arrested and handcuffed plaintiff.

13. That the arrest of plaintiff constituted false arrest.

14. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

15. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

16. The false arrest of plaintiff by defendants, its agents, servants and/or employees,

caused plaintiff pain, suffering, humiliation and personal injury.

17. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

18. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-17 hereof with the same force and effect as though fully set forth herein at length.

19. After falsely arresting plaintiff, police officers handcuffed plaintiff and unlawfully detained plaintiff in police custody.

20. The unlawful detention of plaintiff was without any cause or justification.

21. The incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

22. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

23. The unlawful detention of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

24. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

25. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-17 and 18-24 hereof with the same force and effect as though fully set forth herein at length.

26. That the unlawful detainment, arrest and imprisonment constituted false

imprisonment.

27. That plaintiff was fingerprinted.

28. That plaintiff was photographed.

29. That plaintiff was placed in a cell.

30. That plaintiff was transported to and imprisoned at Central Booking.

31. That plaintiff was released from police custody at approximately 1:00 PM on November 2, 2018.

32. That plaintiff was not arraigned.

33. That plaintiff was not issued a summons or ticket.

34. That plaintiff was not charged with a crime.

35. That plaintiff was not charged with a violation.

36. That plaintiff was not prosecuted.

37. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

38. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

39. The false imprisonment of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

40. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs 1-17, 18-24, and 25-40 hereof with the same force and effect as though fully set forth herein at length.

42. In placing plaintiff under arrest, police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

43. That defendant PO Justin P. McKnight used excessive and unjustified force in arresting plaintiff.

44. While plaintiff was handcuffed and detained, police officers used excessive and unjustified force against plaintiff.

45. The actions of the police officers constituted an assault and battery.

46. As a result of the assault and battery committed by defendants, plaintiff sustained personal injuries.

47. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

48. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

49. That the assault and battery of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

50. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FIFTH CAUSE OF ACTION

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-17, 18-24, 25-40, and 41-50 hereof with the same force and effect as though fully set

forth herein at length.

52. That defendant PO Justin P. McKnight conducted an illegal cavity search of plaintiff at the scene of the arrest.

53. That defendant PO Justin P. McKnight conducted a second illegal cavity search of plaintiff outside the 26th Precinct.

54. That police officers conducted two illegal cavity searches of plaintiff.

55. The actions of defendant PO Justin P. McKnight constituted sexual assault.

56. The actions of the police officers constituted sexual assault.

57. As a result of the sexual assault committed by defendants, plaintiff sustained severe mental and personal injuries.

58. That the incident as aforescribed resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

59. That the police officers acted intentionally, maliciously, wantonly and with deliberate disregard for plaintiff's interests.

60. That the sexual assault of plaintiff by defendants, its agents, servants and/or employees, caused plaintiff pain, humiliation, and personal injury.

61. As a result of the foregoing, plaintiff sustained compensatory and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York
July 26, 2019

Yours, etc.,



Julie P. Lee, Esq. of
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35th Floor
718-855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff(s) in this action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff presently resides outside the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff(s), investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York
July 26, 2019

A handwritten signature in blue ink, appearing to read "Julie P. Lee", is written over a horizontal line.

Julie P. Lee, Esq.
For the Firm
ROSS & HILL, ESQS.

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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ALBERT ESCALERA,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NEW YORK CITY, POLICE DEPARTMENT, and PO
JUSTIN P. MCKNIGHT,**

Defendants.

SUMMONS & VERIFIED COMPLAINT

LAW OFFICES OF ROSS AND HILL, PLLC.

Attorneys for Plaintiff

Office and Post Office Address

16 Court Street, 35th Floor

NEW YORK, New York 11241

Tel (718) 855-2324

Fax (718) 855-4617

To:

**Service of a copy of the within
is hereby admitted.**

Dated:

Attorney(s) for
